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Supreme Court of Victoria - Court of Appeal

Oberoi v Douglas [2026] VSCA 31 (5 March 2026)

Last Updated: 5 March 2026

SUPREME COURT OF VICTORIA

COURT OF APPEAL

S EAPCI 2025 0030

AMANPREET OBEROI Applica

v

FIRST CONSTABLE BRENDAN DOUGLAS Respond

JUDGES:	WALKER JA
WHERE HELD:	Melbourne
DATE OF HEARING:	Determined on the papers
DATE OF JUDGMENT:	5 March 2026
MEDIUM NEUTRAL CITATION:	[2026] VSCA 31
JUDGMENT APPEALED FROM:	[2025] VSC 7 (Gray J)

PRACTICE AND PROCEDURE – Dismissal for want of prosecution – Application filed on 18 March 2025 – Applicant failed to comply with timetable orders or settle application book despite repeated efforts by respondent and Registry to engage with applicant – Registrar informed applicant that application deemed to be abandoned – Applicant did not apply to renew application – Parties notified Court was considering whether matter should be dismissed for want of prosecution – Parties asked whether they objected to dismissal – No objection to dismissal received – Applicant showed intention not to take further steps in proceeding – Dismissal would further overarching purpose in the *Civil Procedure Act 2010* – Application dismissed for want of prosecution.

LEGAL PRACTITIONERS – Disciplinary matters – Inappropriate use of large language model artificial intelligence ('AI') – Applicant's written case, signed and filed by solicitor, appeared to contain non-existent cases and hallucinated quotations – Use of AI appeared to be contrary to Court's guidelines – Court notified applicant's solicitor of Court's concerns – Solicitor did not provide an explanation – Applicant's solicitor cautioned that matter would be referred to Legal Services Commissioner – Solicitor did not provide substantive response – Matter referred to Legal Services Commissioner for investigation.

Supreme Court (General Civil Procedure) Rules, rr 64.45, 64.46; *Civil Procedure Act 2010*, ss 7, 9(1), (2); *Legal Profession Uniform Law Australian Solicitors' Conduct Rules 2015*, r 5.1.2; *Guidelines for litigants – Responsible Use of Artificial Intelligence in Litigation*.

Bishopsgate Insurance Australia Ltd v Deloitte Haskins & Sells [1999] 3 VR 863; *Efektiv Pty Ltd v Madgwicks* [2022] VSCA 72; *De Lutis v Rolfe* [2023] VSCA 323; *Bodycorp Repairers Pty Ltd v Oakley Thompson & Co Pty Ltd [No 2]* [2016] VSCA 183; *Vella v Waybecca Pty Ltd* [2022] VSCA 120; *Udowenko and Ors v Chief Executive Officer & Board of Directors of St Georges Bank — a Division of Westpac Banking Corporation and Ors [No 2]* [2011] NSWSC 1122, considered.

Director of Public Prosecutions v GR [2025] VSC 490; *Re Walker* [2025] VSC 714; *Re Zita (a solicitor)* [2022] VSC 354, approved.

Counsel

Applicant:	n/a
Respondent:	Mr J O'Connor

Solicitors

Applicant:	Dib & Associates Lawye
Respondent:	Ms A Hogan, Solicitor fo Public Prosecutions

WALKER JA:

1. The applicant, Mr Oberoi, applied for leave to appeal the outcome of a judicial review application heard in the trial division. In that application he challenged an order of the County Court disqualifying him from obtaining a driver's licence for four years after he was found guilty of a traffic offence.[1]
2. The application was filed on 18 March 2025. Timetable orders were made on 20 May 2025. Despite repeated efforts by the respondent and the Registry to engage with the applicant, including the grant of further time for compliance, the applicant failed to comply with the timetable orders and an application book was not settled. On 5 June 2025 the Registry informed the applicant that 'the possible consequences of non-compliance' include 'abandonment and dismissal of the appeal pursuant to rule 64.45 and 65.46 Supreme Court (General Civil Procedure) Rules 2015'. On 2 July 2025, the Registry reminded the applicant that non-compliance with orders 'gives rise to an abandonment issue'.

3. On 22 September 2025 the Registrar made orders concerning the proceeding. In the section of the orders headed 'Other Matters' it was noted that, due to the applicant's failure to comply with the Court's earlier orders within 30 days of the time fixed for compliance (or at all), and due to his failure to provide a leave application book, his application for leave to appeal was taken to be abandoned pursuant to rr 64.45(1) and (2) of the *Supreme Court (General Civil Procedure) Rules 2025* ('the Rules'). The order made was as follows:

> If the applicant wishes to apply under r 64.45(4)(a) of the Rules for the Court of Appeal to order that the application for leave to appeal is not taken to be abandoned, he must file and serve that application by 4:00 pm on 6 October 2025.

4. In paragraph 9 of 'Other Matters' it was noted that, if no application is filed in accordance with the order, 'the Court of Appeal may consider dismissing the application for leave to appeal under r 64.46 of the Rules, on its own motion, without further notice to the parties'.
5. The 22 September order was sent to the parties under cover of an email that stated as follows:

> Strict compliance with this order's timeframe is required if the applicant seeks to make that application. Otherwise, as outlined in paragraph 9 of Other Matters the court may consider dismissing the application for leave to appeal on its own motion without further notice to the parties.

6. The applicant has not applied for an order under r 64.45(4)(a).
7. On 3 February 2026 the Registrar referred the application for leave to appeal to me to consider whether the proceeding should be dismissed. On 4 February 2026, the Registrar wrote to the parties to inform them of the referral. The email said this:

> If any party objects to the application for leave to appeal being dismissed by the Court, they must inform the registry and provide substantive reasons for their objection by return email by no later than 4:00 pm on 18 February 2026. The Court will assume there is no objection if no responses are received.

8. No party informed the Registry of an objection to the application for leave to appeal being dismissed by the specified date and time.
9. In light of the matter's history, and the absence of any objection to the application being dismissed, I have concluded that it is appropriate to dismiss the application.

Proceedings below

10. The substance of this application for leave to appeal can be stated briefly for present purposes. The applicant was found guilty in the Magistrates' Court on 5 December 2022 of refusing to accompany a police officer to a place where a sample of breath would be furnished, contrary to s 49(1)(e) of the *Road Safety Act 1986*.[2] The applicant appealed this decision to the County Court.[3] On 21 November 2023 he was found guilty in the County Court and fined without conviction. By reason of certain prior offending committed by the applicant, the County Court found that the charge in question was a 'subsequent offence'. Therefore, applying s 50(1B)(b) of the *Road Safety Act*, the Court made orders cancelling the applicant's licence disqualifying him from obtaining a licence for four years from 5 November 2022.[4]
11. The applicant then applied for judicial review of the County Court's decision by originating motion in the trial division of the Supreme Court.[5] He was unsuccessful in having the County Court decision set aside.

Proceedings in this Court

12. The applicant applied for leave to appeal the outcome of his judicial review application on 18 March 2025.

13. The application for leave to appeal was served on the respondents on 29 April 2025 and documents in response were filed on 5 May 2025. However, the application has not progressed far beyond that stage. The following is a summary of the application's procedural history in this Court.

14. On 5 May 2025 the first respondent filed a notice of contention. On 8 May the Registrar directed the applicant to file a written case and list of authorities in response by 4 June. The Registry also provided a draft timetable order and invited comments by 15 May.

15. On 20 May 2025 Judicial Registrar McCann made directions orders. Relevantly for present purposes, those orders included:

> (a) the applicant must file and serve transcript of relevant hearings in the lower court proceeding by 23 May 2025;
> (b) all parties must confer and endeavour to agree upon a summary for the Court of Appeal, a draft application book index, and cooperate in preparing an agreed list of transcript references (if any party relies on references to the lower court transcript);
>
> (c) the applicant must file and serve a summary (whether agreed or disputed), draft leave application book index (whether agreed or disputed) and, if any party relies on transcript references, an agreed list of transcript references by 28 May 2025.

16. On 23 May 2025 the applicant's solicitor emailed the Court of Appeal Registry and the Registry for the Supreme Court's Judicial Review and Appeals List to 'request a copy of the transcript' of the judicial review proceedings. On 28 May 2025 the solicitor followed up on that email. However, the applicant did not file and serve a summary, draft leave application book index or a list of transcript references by 28 May 2025

17. On 3 June 2025 the respondent's solicitors filed a draft summary of facts and application book index. In an email to the Registry, a solicitor for the respondent explained that these documents were prepared 'without input from the applicant'. The solicitor explained the draft index and the respondent's comments on the applicant's draft summary were sent to the applicant on 7 May 2025 but no response was received.

18. On 5 June the Registry directed the applicant to confer with the respondent in relation to the draft application book index and summary. The Registry's email noted that it appeared the applicant had not complied with the Court's directions and that a possible consequence would be 'abandonment and dismissal of the appeal pursuant to rule 64.45 and 65.46'.[6]

19. On 6 June the applicant's solicitor sent the following email to the Registry:

> We kindly seek and extension date for our office to file the Court book and Transcript. We understand the transcript was due on 23 May 2025 and the Court book due 28 May 2025.
> Due to unforeseen staffing issues, we were unable to submit these documents on the requested date. We apologise for the late email and seek the Courts understanding.
>
> We confirm we have not finalised the Court book or transcript as there was a misunderstanding with ordering the transcript from EPIC.[[7]] We confirm we the transcript has been requested and hope to receive it early next week. We endeavour to get everything finalised within a few days of receiving the requested material. We kindly seek and extension to 4pm Thursday 12 June 2025 or Friday 13 June 2025 if possible.
>
> Should you have any further enquiries, please do not hesitate to contact the writer.

20. On 12 June the Registry allowed an extension until 26 June 2025 to comply with orders 1 and 3 of the 20 May 2025 orders, being to provide a transcript and an agreed summary, draft application book and transcript references. The applicant did not file those documents by 26 June 2025.

21. On 2 July 2025 the Registry wrote to the parties to ascertain whether the applicant intended to continue the appeal or seek an extension.

22. On 7 July 2025 the respondent asked the Registry by email whether there had been any updates. The Registry confirmed on 14 July that no response had been received from the applicant. The respondent's solicitor sent a further email on 20 August 2025, following on from a phone call with a Registry staff member, noting her understanding that 'there has been no further movement on the Court file for this matter'. These emails were copied to the applicant.

23. On 18 September 2025 the applicant's solicitor emailed the Registry (without copying the respondent) referring to her emails of 23 and 28 May 2025, in which she had requested a copy of the transcript:

> I refer to the below correspondence.
> This is a follow up to that email.
>
> Thank you.
>
> Should you have any further enquiries, please do not hesitate to contact the writer.

24. On 22 September 2025 Judicial Registrar Roberts made an order, which noted the following matters:

> (a) the directions in the 20 May 2025 order and the contents of the emails of 5 and 12 June, 2 July and 18 September 2025;
> (b) that the applicant did not file documents in response to the notice of contention, did not comply with the 20 May 2025 Order and did not provide a leave application book by the time fixed by that order; and
>
> (c) that, accordingly, the application for leave to appeal was taken to be abandoned pursuant to rr 64.45(1) and (2) of the Rules.[8]

25. The Judicial Registrar ordered the applicant to file any reinstatement application by 6 October 2025.[9]

26. The Registry's email to the parties regarding the 22 September 2025 order attached the applicant's 18 September email for the respondent's benefit. The Registry's email explained the effect of the order:

> **In relation to the applicant's question about the status of the matter, the matter is currently taken to be abandoned due to non-compliance with prior directions and orders.** The order of Judicial Registrar Roberts sets out the relevant background that led to this proceeding being taken to be abandoned. It also provides a limited timeframe for the applicant to apply for an order that the application for leave to appeal is not taken to be abandoned. **Strict compliance with this order's timeframe is required if the applicant seeks to make that application. Otherwise, as outlined in paragraph 9 of Other Matters the court may consider dismissing the application for leave to appeal on its own motion without further notice to the parties.**[10]

27. The applicant's solicitor sent the following response on 23 September 2025:

> The correspondence sent to your office was to request a copy of the relevant transcript.
> **Our office has attempted on several occasions to try and obtain a copy of the transcript without any success. We are now advised that the appeal is considered to be abandoned due to non-compliance.**
>
> The correspondence attached by your office outlines this.
>
> We were hoping we would be able to receive some assistance from the registry in relation to this.
>
> **In any event, we apologise for the inconvenience and will take steps towards compiling the remaining documents for the Court book.**
>
> Thank you.

> Should you have any further enquiries, please do not hesitate to contact the writer.[11]

28. The Registry did not receive any further correspondence from the applicant. No reinstatement application was made by 6 October 2025, or at all.
29. On 10 November 2025 the respondent emailed the Registry enquiring as to the status of the matter. The Registry confirmed on 13 November that no reinstatement application had been filed. The respondent again emailed the Registry on 17 November 2025 and 6 January 2026. All of these emails were copied to the applicant's solicitor.
30. As noted earlier, on 3 February 2026 the Registrar referred the matter to me, and informed the parties of that referral on 4 February 2026. The parties were requested to inform the Court if there was any objection to the matter being dismissed. No response to that email was received.
31. On 6 February 2026, my associate sent a letter to the applicant's solicitors raising issues concerning citations and quotations in the applicant's application for leave to appeal. That issue is dealt with in the latter part of these reasons.

Consideration

Applicable principles

32. The Court of Appeal has power under r 64.46(1)(d), and an inherent power, to dismiss an application for want of prosecution. Such an order may be made on the Court's own motion or on the application of a party.[12]
33. This Court recited the principles for exercising the inherent power to dismiss an application for want of prosecution in *Bishopsgate Insurance Australia Ltd v Deloitte Haskins & Sells,*[13] which have since been cited with approval in relation to r 64.46(1)(d).[14] The Court said this:

> The power should be exercised only where the court is satisfied either (1) that the default has been intentional and contumelious, e.g. disobedience to a peremptory order of the court or conduct amounting to an abuse of the process of the court; or (2)(a) that there has been an inordinate and inexcusable delay on the part of the plaintiff or his lawyers, and (b) that such delay will give rise to a substantial risk that it is not possible to have a fair trial of the issues in the action or is such as is likely to cause or to have caused serious prejudice to the defendants, either as between themselves and the plaintiffs, or between each other, or between them and a third party.[15]

34. In addition to the categories of cases listed above, this Court in *Efektiv Pty Ltd v Madgwicks*[16] stated that dismissal for want of prosecution is available for cases where the parties have shown an intention not to take further steps in the proceeding:

> Ordinarily, when one contemplates whether a proceeding should be dismissed for want of prosecution, one considers whether there have been intentional and contumelious failures to comply with court orders or specified time limits, or inordinate and inexcusable delay (giving rise to prejudice) on the part of the plaintiff/applicant.[17] The present case, however, is not of that kind. It is more akin to a case of the kind described by Johnson J in *Udowenko and Ors v Chief Executive Officer & Board of Directors of St Georges Bank — a Division of Westpac Banking Corporation and Ors [No 2]*:[18] **namely, a proceeding that has, at best, barely moved to first base, let alone beyond it.[19] What is plain is that the parties (or those who are entitled to progress the proceeding) have no intention of taking any further step in the proceeding —** the proceeding having been allowed to lie dormant for in excess of two years.[20]

35. It has previously been emphasised that the Court's power to dismiss an application puts an end to that person's legal rights and is not to be exercised lightly.[21] This Court is now obliged, however, to give effect to the

overarching purpose in s 7 of the *Civil Procedure Act 2010* in making any order or giving any direction in a civil proceeding.[22] That purpose is 'to facilitate the just, efficient, timely and cost-effective resolution of the real issues in dispute'.

36. Section 9(1) of the *Civil Procedure Act* relevantly sets out the following objects that the Court must have regard to in furthering the overarching purpose when making orders:

> (a) the just determination of the civil proceeding;
>
> ...
>
> (c) the efficient conduct of the business of the court;
> (d) the efficient use of judicial and administrative resources;
>
> ...
>
> (f) the timely determination of the civil proceeding;
> ...

37. Section 9(2) relevantly provides that, for the purposes of the objects in s 9(1), the Court may have regard to:

> (a) the extent to which the parties have complied with any mandatory or voluntary pre-litigation processes;
> (b) ...
>
> (c) the degree of promptness with which the parties have conducted the proceeding, including the degree to which each party has been timely in undertaking interlocutory steps in relation to the proceeding;
>
> (d) the degree to which any lack of promptness by a party in undertaking the proceeding has arisen from circumstances beyond the control of that party;
>
> (e) the degree to which each person to whom the overarching obligations apply has complied with the overarching obligations in relation to the proceeding;
>
> (f) any prejudice that may be suffered by a party as a consequence of any order proposed to be made or direction proposed to be given by the court; ...

The application must be dismissed

38. In the present case the applicant's failure to object to the proceeding being dismissed, coupled with his repeated failure to comply with directions and engage with correspondence from Registry staff, means that the appeal must be dismissed for want of prosecution.

39. In the absence of objection to the dismissal following the correspondence from the Registry, it is apparent that the applicant has no intention of pursuing his application.[23] Furthermore, the application has not moved beyond the initial stages.[24] In addition, I have had regard to the following matters.

40. *First*, this Court is bound to balance the 'just determination' of a matter against the efficient conduct of the court's business and use of judicial resources.[25] The applicant has failed to comply with pre-litigation processes[26] and has not conducted himself promptly.[27] In the 10 months since the application was commenced, barely any progress has been made. The application book has not been finalised, and the applicant's repeated failure to comply with the Court's directions and engage with Registry staff has led to a waste of the Court's and the respondent's resources. It would not be in the interests of the efficient conduct of the Court's business and use of judicial resources for this matter to remain on foot.

41. *Secondly*, the applicant has been on notice since the Registry's 5 June 2025 email that a potential consequence of his conduct would be 'abandonment and dismissal of the appeal'. The applicant was reminded of this consequence on 2 July 2025. On 22 September 2025 the applicant was informed, in plain English, that the appeal was taken to have been abandoned and that he would need to make a reinstatement application by 6 October 2025. On 4 February 2026 he was asked if he objected to the proceeding being dismissed; no objection was received. It is plain that the matter has been abandoned by the applicant.

42. *Thirdly*, litigants and their legal practitioners are subject to the overarching obligations in the *Civil Procedure Act*. Relevantly, these include obligations to cooperate in the conduct of a civil proceeding,[28] to act promptly and to minimise delay.[29] A great number of emails from Registry staff and the respondent have been ignored by the applicant's solicitors or have not been answered in any meaningful way. No explanation has been provided for this conduct, safe for 'unforeseen staffing issues' which delayed the submission of documents and an apparent inability to order a transcript.

43. For these reasons, an order dismissing the proceeding would further the overarching purpose. I will thus order that the application is dismissed for want of prosecution.

Costs

44. Rule 64.46(3) provides that if an application is dismissed for want of prosecution the applicant will pay the respondent's costs of the application on an indemnity basis, unless the Court otherwise orders. This is so 'because it would ordinarily follow that an applicant should bear the other party's costs of a proceeding which was not prosecuted'.[30]

45. In addition, I note that, under r 63.23, a solicitor may be made personally liable for costs in certain circumstances. It appears to me that it may be appropriate for me to make an order of that kind in this case.

46. Before making any order for costs, I will provide the parties and the applicant's solicitors with an opportunity to make submissions on the appropriate costs order.

Use of artificial intelligence

47. In the course of my consideration of the application for leave to appeal, I became concerned that the applicant's solicitor appeared to have used artificial intelligence ('AI') in preparing part of the applicant's written case. Such use of AI appeared to me to be contrary to guidelines published by the Court in relation to the use by practitioners of AI tools and resulted in reliance being placed upon non-existent ('hallucinated') cases and hallucinated quotations from real cases. Those guidelines,[31] published in May 2024, set out a number of principles for the manner in which AI may be used by litigants, including the following:

> (a) Parties and practitioners who use AI tools should ensure that they have an understanding of the manner in which those tools work, as well as their limitations.[32]
> (b) The use of AI programs by a party must not indirectly mislead another participant in the litigation process, including the Court, as to the nature of any work undertaken, or the content produced by that program. Ordinarily, parties and their practitioners should disclose to each other the assistance provided by AI programs.[33]
>
> (c) The use of AI programs to assist in the completion of a legal task must be subject to the obligations of legal practitioners in the conduct of litigation, including the obligation of candour to the Court and, where applicable, to obligations imposed by the *Civil Procedure Act*.[34]

48. The Guidelines set out how these principles are to be applied, including as follows:[35]

> [8] Generative AI and Large Language Models create output that is not the product of reasoning. Nor are they a legal research tool. They use probability to predict a given sequence of words. Output is

> determined by the information provided to it and is not presumed to be correct. The use of commercial or freely available public programs such as ChatGPT and Google Gemini, is more likely to produce results that are inaccurate for the purpose of current litigation. Generative AI does not relieve the responsible legal practitioner of the need to exercise judgment and professional skill in reviewing the final product to be provided to the Court. AI generated text should be checked so as not to be:
>
> ...
>
> (c) inaccurate or incorrect, in that the tool may not produce factually or legally correct output (for example in some situations, users have been adversely affected by placing reliance on made-up cases or incorrect legal propositions);
>
> ...
>
> [9] A party or practitioner signing or certifying a document, filing a document with the Court, or otherwise relying on a document's contents in a proceeding, remains responsible for accuracy of the content. Whether a court document is signed by an individual or on behalf of a firm, the act of signing a document that is filed with the Court is a representation that the document is considered by those preparing it to be accurate and complete. Reliance on the fact that a document was prepared with the assistance of a generative AI tool is unlikely to be an adequate response to a document that contains errors or omissions.

49. As stated by Elliott J in *Director of Public Prosecutions v GR*, and again more recently by Moore J in *Re Walker*, it is essential that all litigants and practitioners adhere to the Guidelines.[36] This is because, as Elliott J said:

> The ability of the court to rely upon the accuracy of submissions made by counsel is fundamental to the due administration of justice. Self-evidently ... any use of artificial intelligence without careful and attentive oversight of counsel would seriously undermine the court's processes and its ability to deliver justice in a timely and cost-effective manner.[37]

50. It is not acceptable for artificial intelligence to be used by solicitors or barristers in the production of court documents, unless the product of that use is independently and thoroughly verified.[38]

What occurred in this case

51. In the present proceeding the applicant filed an application for leave to appeal that included a written case. The applicant's written case was signed by the applicant's solicitor. The written case set out the submissions in support of the proposed grounds of appeal. The solicitor is admitted to practice in Queensland.

52. In reading the applicant's written case, I observed that several quotations included in the written case could not be found in the cases from which they were said to be taken. I also observed that several authorities referred to in the written case did not appear to exist. I then asked my associate to assess every case and quotation referred to in the submissions. After reviewing his work, I concluded that seven cases cited in the applicant's written case were non-existent by reference to the name and citation (although in many cases the name was correct, but the citation was not). Furthermore, 12 quotations were also non-existent, at least in full, in the sense that I could not locate them in the case in which they were said to have been extracted (in some cases, part of the quotation was correct).

53. On 6 February 2026 my chambers emailed the solicitor to draw to her attention the cases and quotations that I could not locate. The letter invited her to provide the cases and appropriate citations for the quotes to the Court, or to explain how these came to appear in the applicant's written case (the 'first letter'). The first letter requested a response by 13 February 2026.

54. The solicitor did not respond to the first letter.

55. On 19 February 2026 my chambers again wrote to the solicitor. This letter:

> (a) stated my concerns regarding the potential inappropriate use of artificial intelligence;
> (b) referred to the relevant passage of the Supreme Court's Guidelines for Litigants – Responsible Use of Artificial Intelligence in Litigation published in May 2024;
>
> (c) drew the solicitor's attention to Justice Moore's decision in *Re Walker*;
>
> (d) requested the solicitor to provide, by 27 February 2026:
>
> > (i) an affidavit explaining how the cases and quotations in question came to appear in the applicant's written case; and
> > (ii) submissions as to whether the matter should be referred to the Legal Services Commissioner, to the Queensland Legal Services Commissioner, or dealt with pursuant to the Court's inherent jurisdiction; and
>
> (e) cautioned the solicitor that I proposed to refer this matter to the Legal Services Commissioner if no response was received.

56. The letter was copied to the managing partner of the solicitor's firm.
57. On 19 February 2026, the solicitor provided an interim response to the second letter, acknowledging receipt of it and stating that a response would be forthcoming; but ultimately she did not provide the Court with a substantive response, and did not provide an affidavit or other explanation for the issues I had identified.

Consideration

58. As Moore J said in *Re Walker*, practitioners who conduct litigation in the Court have a responsibility to comply with any requirements imposed upon them by legislation, the rules of court, practice notes and other published guidance:

> Ignorance of these requirements is no excuse; as part of their professional obligations, it is incumbent on practitioners to appropriately inform themselves about the obligations and duties to which they are subject.[39]

59. The Guidelines make clear that it is necessary for a practitioner to understand the limitations of AI tools and to disclose their use. The use of AI does not relieve a practitioner of the need to exercise judgment and professional skill in reviewing any document that was to be provided to the Court, as well as the need to check any AI generated text so as to ensure that it was accurate. This includes ensuring that AI generated text does not contain non-existent cases or invented quotations.
60. Even putting to one side the Guidelines, reliance by a practitioner on authorities which do not exist, and on 'quotations' that are not in fact taken from the cases cited, represents a falling short of the standards of diligence that a member of the public is entitled to expect of a reasonably competent lawyer. The rules of professional conduct also prohibit legal practitioners from engaging in conduct which is likely, to a material degree, to be prejudicial to, or diminish, public confidence in the administration of justice.[40] As Elliott J said in *DPP v GR,*[41] and Moore J said in *Re Walker,*[42] the accuracy of submissions to a court made by legal practitioners is fundamental to the due administration of justice.
61. In the absence of any response from the solicitor, I continued to have serious concerns about her conduct in relation to the potential use of AI. However, in the circumstances it is not possible for me to determine precisely what occurred in the preparation of the applicant's written case. Nor is it possible for me to determine whether it would be appropriate for me to exercise the Court's inherent supervisory jurisdiction over legal practitioners,[43] for example by reprimanding the solicitor, which was the course adopted by Moore J in *Re Walker*.[44] Rather, the only

practicable course available to me is to refer the solicitor to the Legal Services Commissioner for investigation. Accordingly, I propose to take that step.

Conclusion

62. For these reasons, I will order that the application for leave to appeal is dismissed for want of prosecution pursuant to r 64.46(1)(d) of the Rules. The Court will hear from the parties regarding appropriate orders as to costs.

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[1] The first respondent is the police officer who charged the applicant with this offence. The second respondent, the County Court of Victoria, has provided a letter indicating it will take no part in the proceeding: see *R v Australian Broadcasting Tribunal, ex parter Hardiman* (1980) 144 CLR 13; [1980] HCA 13. For convenience, I will refer to the first respondent as the 'respondent'.

[2] The applicant was charged with two other related driving offences which are not central to his application for leave to appeal.

[3] Pursuant to s 254 of the *Criminal Procedure Act 2009*. This was a hearing *de novo*.

[4] Reasons, [29]. Section 48(2) of the *Road Safety Act* contains the definition of 'subsequent offence'. It relevantly provides that where a person has been convicted, or found guilty, of an offence against s 49(1), and has at any time been convicted or found guilty of an offence under the same section, the new offence is taken to be a 'second' or 'subsequent offence'.

[5] *Oberoi v First Constable Brendan Douglas* [2025] VSC 7 (Gray J) ('Reasons').

[6] The reference to r 65.46 appears to be an intended reference to r 64.46.

[7] This appears to be a reference to Epiq Australia Pty Ltd, one of the Court's preferred transcription providers for civil proceedings. The relevant Supreme Court practice note explains that parties are required to order a transcript from a preferred provider: see *SC Gen 7 Transcript in Civil Proceedings (Second Revision)*.

[8] Rule 64.45(1)(b) provides that an application for leave to appeal is taken to be an abandoned if an applicant does not comply with any direction given or order made by the Registrar within 30 days after the expiry of the time fixed or allowed by the direction or order. Rule 64.45(2) provides that if an applicant does not provide a leave application book within the time fixed, the application is taken to be abandoned and may be referred for dismissal under r 64.46.

[9] See Rules, r 64.45(4)(a).

[10] Emphasis added.

[11] Emphasis added.

[12] Rules, r 64.46(1)(d).

[13] [1999] 3 VR 863 ('*Bishopsgate*').

[14] See *De Lutis v Rolfe* [2023] VSCA 323, [26] (Kennedy JA) ('*De Lutis*'); *Efektiv Pty Ltd v Madgwicks* [2022] VSCA 72, [17] (Beach JA).

[15] *Bishopsgate* [1999] 3 VR 863, 872 [25] (Tadgell and Ormiston JJ, Brooking J agreeing at 865 [1]); quoting *Department of Transport v Chris Smaller (Transport) Ltd* [1989] AC 1197, 1204 (Griffiths LJ). See also *Birkett v*

James [1978] AC 297, 318 (Diplock LJ); *Allen v Sir Alfred McAlpine & Sons Ltd* [1968] 2 QB 229, 246 (Denning LJ), 268–9 (Salmon LJ).

[16] [2022] VSCA 72 ('*Efektiv*').

[17] See generally *Allen v Sir Alfred McAlpine & Sons Ltd* [1968] 2 QB 229; *Birkett v James* [1978] AC 297; *Department of Transport v Chris Smaller (Transport) Ltd* [1989] AC 1197; *Bishopsgate Insurance Australia Ltd v Deloitte Haskins & Sells* [1999] 3 VR 863.

[18] [2011] NSWSC 1122, [115]–[124] ('*Udowenko*'). See also *Knorr v CSIRO [No 2]* [2012] VSC 268, [44]; *Knorr v CSIRO [No 3]* [2012] VSC 529, [5], [29].

[19] *Udowenko* [2011] NSWSC 1122, [117].

[20] *Efektiv* [2022] VSCA 72, [17] (Beach JA) (citations in original, emphasis added); cited in *De Lutis v Rolfe* [2023] VSCA 323, [26] (Kennedy JA).

[21] See, eg, *Allen v Sir Alfred McAlpine & Sons Ltd* [1968] 2 QB 229, 259 (Diplock LJ); cf *Udowenko* [2011] NSWSC 1122, [120] (Johnson J).

[22] See *Civil Procedure Act,* ss 7, 8(1), 9(1). See also *Bodycorp Repairers Pty Ltd v Oakley Thompson & Co Pty Ltd [No 2]* [2016] VSCA 183, [22] (McLeish JA, Tate JA agreeing at [1]); citing *Sullivan v Greyfriars Pty Ltd* [2015] VSCA 196, [23] (Whelan and McLeish JJA); *Udowenko* [2011] NSWSC 1122, [120]–[124] (Johnson J).

[23] *De Lutis* [2023] VSCA 323, [27(c)] (Kennedy JA); *Vella v Waybecca Pty Ltd* [2022] VSCA 120, [20] (Beach JA).

[24] *Udowenko* [2011] NSWSC 1122, [117]–[118] (Johnson J).

[25] *Civil Procedure Act*, s 9(1)(a), (c), (d).

[26] *Civil Procedure Act*, s 9(2)(a).

[27] *Civil Procedure Act*, s 9(2)(c).

[28] *Civil Procedure Act*, s 20.

[29] *Civil Procedure Act*, s 25.

[30] *De Lutis* [2023] VSCA 323, [29] (Kennedy JA).

[31] 'Guidelines for litigants – Responsible Use of Artificial Intelligence in Litigation' (the 'Guidelines').

[32] The Guidelines, [1].

[33] The Guidelines, [3].

[34] The Guidelines, [4].

[35] The Guidelines, [8]–[9].

[36] *Director of Public Prosecutions v GR* [2025] VSC 490, [78] (Elliott J) ('*DPP v GR*'); *Re Walker* [2025] VSC 714, [61] (Moore J).

[37] *Director of Public Prosecutions v GR* [2025] VSC 490, [79] (Elliott J).

[38] *Director of Public Prosecutions v GR* [2025] VSC 490, [80] (Elliott J).

[39] [2025] VSC 714, [74] (Moore J).

[40] *Legal Profession Uniform Law Australian Solicitors' Conduct Rules 2015*, r 5.1.2(j).

[41] *DPP v GR* [2025] VSC 490, [79] (Elliott J). See [49] above.

[42] *Re Walker* [2025] VSC 714, [61] (Moore J).

[43] See *Re Zita (a solicitor)* [2022] VSC 354, [90], [96] (John Dixon J).

[44] *Re Walker* [2025] VSC 714, [72] (Moore J).